

SENATE No. 2547

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, July 7, 2025.

The committee on Transportation to whom was referred the petition (accompanied by bill, Senate, No. 2352) of Brendan P. Crighton for legislation relative to the Move Over Law, report the accompanying bill (Senate, No. 2547).

For the committee,
Brendan P. Crighton

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An Act relative to the Move Over Law.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 7C of chapter 89 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the definition of “Recovery vehicle” the
3 following definitions:-

4 "Utility vehicle," a vehicle being used to install, maintain, repair, operate or restore
5 communications service, electric or gas distribution or transmission service in an emergency and
6 that is operated by an employee of or a person under contract with a company incorporated for
7 the transmission of intelligence by electricity or by telephone or an electric distribution,
8 transmission or distribution company as defined by section 1 of chapter 164.

9 "Disabled vehicle", any nonemergency vehicle that is stationary and located on the
10 shoulder or breakdown lane of a roadway or highway.

11 SECTION 2. Subsection (b) of said section 7C of said chapter 89, as so appearing, is
12 hereby amended by inserting after the words “maintenance vehicle”, the following words:- “,
13 utility vehicle or disabled vehicle”.

SECTION 3. Paragraph (1) of said subsection (b) of said section 7C of said chapter 89, as so appearing, is hereby amended by inserting after the words “maintenance vehicle”, the following words:- “, utility vehicle or disabled vehicle”.

SECTION 4. Section 7C of chapter 89, as so appearing, is hereby amended by striking out subsection (c) and inserting in place thereof the following subsections:-

“(c) Violation of this section may be punished by a fine of \$250 for the first offense, by a fine of \$500 for the second offense, and by a fine of \$1,000 for a third or any subsequent offense. Any violation of this section, regardless of the number of prior violations, that results in injury to another person may be punished by a fine of \$2,500 or imprisonment in a jail or house of correction for up to 1 year, in addition to any other fines imposed pursuant to this section.

(d) In addition to any fines pursuant to subsection (c), an operator who commits a second or third offense shall be required to complete a program selected by the registrar of motor vehicles that encourages attitudinal changes in drivers who have committed a violation of the motor vehicle laws laid out in this section.

(e) While a first or second offense under this section shall not be a surchargeable incident under section 113B of chapter 175 or under motor vehicle liability policy as defined in section 34A that is issued pursuant to said chapter 175, any subsequent offense shall be a surchargeable incident under said section 113B of said chapter 175 or under a motor vehicle liability policy as defined in said section 34A that is issued pursuant to said chapter 175.